



File No.: EXP202400057

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CAJA RURAL DE GIJÓN, S.C.A.C. (hereinafter the claimed party). After notifying the initiation agreement and analyzing the allegations presented, on December 3, 2024, the proposal for resolution was issued, which is transcribed below:

<<

File No.: EXP202400057 (PS/0006/2024)

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

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BACKGROUND

FIRST

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On 12/12/2022, a security breach of personal data of the entity belonging to the
CAJA RURAL GROUP: CAJA RURAL DE GIJON, S.C.C. with NIF

F33604455 (hereinafter CAJA RURAL DE GIJON) was reported as the data controller.

It should be noted that, as a result of notifications to the Division of Technological Innovation of this
Agency regarding the personal data breach in various Entities of the aforementioned Group, including
the claimed party, related to a cyber incident, the General Subdirectorate of Data Inspection was
ordered to carry out the appropriate preliminary investigations in order to determine a possible violation
of data protection regulations.

1. Initially, the notifications of the breach were made by the data processor RURAL SERVICIOS
INFORMÁTICOS S.L. (hereinafter RSI), concerning 19 entities of the Group:

2. The initial notification and additional notification dates are: 12/12/2022 and 10/01/2023.

3. However, on 13/12/2022, 14/12/2022, and 15/12/2022, breach notifications were made by another 7
entities of the group, in their capacity as

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data controllers, even though the data processor is the same.

The breach notification forms are accompanied by the Security Incident Report prepared in all cases by RSI, the data processor.

1. Date of breach detection: 09/12/2022

2. Date of breach occurrence: 10/11/2022

3. Summary of the notification:

(...).

1.

Type of affected data:

(...).

2.

Approximate number of individuals whose personal data is collected, stored, or otherwise processed exclusively related to the processing in which the breach occurred, No. of individuals (...).

3.

Approximate number of individuals whose data has been affected by the breach, No. affected (...).

4.

Number of affected individuals informed.

5.

No. communicated (...).

SECOND:

As a consequence of the notifications to the Division of Technological Innovation of this Agency regarding personal data breaches in various Entities of the GRUPO CAJA RURAL related to a cyber incident, the General Subdirector of Data Inspection is ordered to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

During the present proceedings, data has been obtained regarding the facts described in relation to various entities, including the one that is the subject of this procedure: CAJA RURAL DE GIJON, S.C.C. with NIF F33604455 located at PASEO DE LA INFANCIA, NUM 10 – 33207 GIJÓN (ASTURIAS).

RSI has also been investigated in its capacity as data processor.

In order to investigate the occurrence of the described facts, on 29/03/2023, a request for information was made to RSI. The response to the request was received on 14/04/2023.

On 12/05/2023 and 27/09/2023, RSI was requested to provide additional information, and on 26/05/2023 and 11/10/2023, responses were received at the electronic headquarters of the AEPD.

In order to introduce the applications involved in the breach that will be referenced throughout this report, the description provided in the documentation submitted by RSI in the context of the investigation proceedings is reproduced below:

(...)

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Furthermore, RSI, in its document received by the AEPD on 14/04/2023, states:

(...)

Regarding the number of users served by Electronic Banking and the modes of access:

(...)

Regarding the chronology of events. Actions taken to minimize adverse effects and measures adopted for final resolution

In the Security Incident Analysis Report accompanying the breach notification form, it is noted:

(...)

From the areas of RSI responsible for fraud and the development of the NBE, the investigation began

to understand how the fraud had occurred.

(...)

The mitigating measures taken on December 7 and 9 were:

(...)

Regarding the causes that made the breach possible

Factors that contributed to the occurrence of the incident

(...)

Regarding the affected data

The information that may have been accessed during the breach includes personal, contact, and financial data:

(...)

In the Security Incident Analysis Report accompanying the breach notification form, the type of information extracted by the cybercriminal and the impact on individual clients is analyzed, taking into account, among others, the following variables:

(...)

During the course of the investigation proceedings, additional information was requested from RSI regarding the data of clients who do not have an Electronic Banking Agreement to which the users involved in the breach may have accessed. In its response document, RSI states that:

(...)

The following personal and contact data are listed:

(...)

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Regarding the data processing agreement

RSI provides the Record of Processing Activities of RSI and indicates that the processing related to the operation of Electronic Banking is the Customer Management processing, where RSI acts as the processor.

RSI submits the Agreement modifying the data protection clause of the service provision contracts signed between CAJA RURAL DE JAÉN, BARCELONA Y MADRID, S.C.C. (data controller), and RSI (data processor).

RSI states that this Agreement was signed with the Entities in 2018 and that it is the same model for all of them.

The Agreement includes, among other aspects:

The purpose of the Agreement is to establish the legal framework applicable to the processing of personal data that is processed or may be processed by the data processor, under the service provision contracts signed between the parties, and which are under the ownership and control of the data controller.

The data processor is obliged to process the data in accordance with the instructions of the data controller.

The data processor shall apply technical and organizational security measures to ensure an adequate level of security.

The processor is authorized to subcontract the companies listed in Annex A of the Agreement – Subcontracting. The subcontractor, who also qualifies as a data processor, is equally obliged to comply with the obligations established in the Agreement for the data processor and the instructions issued by the data controller.

Regarding security measures

RSI indicates that the planning for the development of the NBE extends from 2019 to 2022 and that during December 2019, a risk analysis of the NBE was conducted for both the Web version and the App. The following areas were analyzed:

(...)

From the Customer Management processing, RSI indicates that a data protection risk analysis has been conducted by the Data Protection Officer. This analysis is performed with an initial review of the list of threats and the assessment of whether they apply to the processing or not, providing the threat assessment questionnaire and a second part, where the risk analysis is conducted according to RSI's risk analysis methodology. The results of this analysis are provided.

RSI indicates that (...) and that in compliance with this line of work, three security evaluations have been conducted on Ruralvía Clásica, the reports of which are provided:

Report prepared by the company ***COMPANY.1, dated 28/02/2022.

Report prepared by the company ***COMPANY.1, dated 28/04/2022.

Report prepared by the company ***COMPANY.2, continuous evaluation reflecting the tests conducted between 01/10/2021 and 30/04/2023, where all critical vulnerabilities are closed.

The report prepared by RSI's Cybersecurity department is also provided, which lists the three security evaluations conducted by a third party and the status of the resolution of the detected vulnerabilities.

Additionally, RSI certifies that (...) an ethical hacking audit was conducted in June 2022 by an external provider. The audit report is attached and states:

(...)

In its submission dated 11/10/2023 to the AEPD, RSI explains:

(...)

Furthermore, the audits conducted after those mentioned in the previous information requests in compliance with the fraud plan are listed:

(...)

Likewise, the latest audit of compliance with the security measures of (...) to comply with the PSD2 Delegated Regulation is provided, covering the period from 15/12/2021 to 15/12/2022. The report is dated 15/12/2022. Specifically, it focused on reviewing the information associated with the security measures related to enhanced authentication measures across the various channels and payment services offered by RSI. The Audit Report prepared by the firm ***COMPANY.3 is provided.

To address the detected vulnerabilities in accordance with the compliance level with ***STANDARD.1, RSI proceeds to implement an action plan. The Action Plan with the current status is provided.

Security measures implemented prior to the data processing breach where it occurred.

(...)

This is why the implemented security measures did not prevent the incident.

(...)

(...)

Technical and organizational measures adopted to avoid, as much as possible, incidents like the one that occurred.

In addition to the measures described above, RSI conveys in its document Response to AEPD Complaint:

(...)

RSI, in its submission dated 11/10/2023 to the AEPD, details the functioning of these controls:

(...)

Throughout February 2023, the following actions were carried out:

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(...)

Information on the recurrence of these events and the number of analogous events that have occurred over time

RSI states that these events are not recurrent, being this the first occasion on which they have occurred.

It also notes that they have not received any news from their Cyber Threats service regarding the publication of data on the dark web.

THIRD:

On January 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CAJA RURAL DE GIJON, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR, for the alleged infringement of Article 32, classified under Article 83.4.a) of the GDPR, and for the alleged infringement of Article 33, classified under Article 83.4.a) of the GDPR, granting a period of ten days to submit allegations.

This initiation agreement, which was notified to CAJA RURAL DE GIJON, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on January 24, 2024, as stated in the acknowledgment of receipt in the file.

FOURTH:

On January 29, 2024, CAJA RURAL DE GIJON submitted a document through which it requested an extension of the deadline to present allegations and to be provided with a copy of the file.

FIFTH:

On February 5, 2024, the instructing body of the procedure agreed to extend the requested deadline by a maximum of 10 days, starting from the day after the receipt of the copy of the file, and that a copy of the file be sent to CAJA RURAL DE GIJON.

The aforementioned agreement was notified to CAJA RURAL DE GIJON on February 6, 2024, as stated in the acknowledgment of receipt in the file.

SIXTH:

On February 22, 2024, the instructor of the file sent a written communication to the data controller indicating that "Since a large part of the documentation in the file has been provided by RSI through the General Electronic Registry, the registration numbers of the submitted documents were grouped by dates, so that within 10 working days, it could communicate whether there were documents, or parts of documents, that it considered should not be provided to the accused party, due to reasons related to commercial secrecy, personal data protection, or others."

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SEVENTH:

On March 7, 2024, the data controller stated "that regarding its transfer to the accused party, my client considers that it does not correspond to it, but to the AEPD to assess the legality of such transfer and/or, if applicable, the existence of any impediments or limitations that the applicable regulations may establish."

EIGHTH:

On April 12, 2024, the instructor of the procedure sent two documents to the accused party: one, providing a copy of the administrative file in accordance with what is indicated in Article 53.1 a) of the LPCAP and, independently, a second one in which the key and the hash that will allow access to the documentation included in the physical support are provided.

NINTH:

On April 26, 2024, CAJA RURAL DE GIJON submitted a document of allegations summarizing the following:

1. That all the procedures (26) opened against the entities belonging to the Caja Rural Group be accumulated due to the close connection and substantial identity; the absence of culpability of the accused party in the present case;
2. The impact on the principles of sanctioning law as a consequence of the interpretation made by the AEPD;
3. Non-existence of a violation of Article 32.1 of the GDPR;
4. Non-existence of a violation of Article 5.1.f) of the GDPR;
5. Non-existence of a violation of Article 33 of the GDPR;

6. Violation of the principle of proportionality in determining the sanctions;

7. That the proceedings be archived or a warning sanction be agreed upon or a significant reduction of the sanction.

TENTH:

On October 21, 2024, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider reproduced for evidentiary purposes the complaint filed by the complainant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file.
- To consider reproduced for evidentiary purposes the allegations to the initiation agreement presented by the accused party and the accompanying documentation.
- To request the accused party to provide documentation proving that, if applicable, it had instructed its data controller to notify the AEPD of the personal data breach that is the subject of this sanctioning file and the accreditation of both the aforementioned instruction and the terms contained therein and the expression of the date thereof.

On November 5, 2024, the accused party responded to the evidence practiced, the content of which is in the file.

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ELEVENTH

:

Attached as an annex is a list of documents in the proceedings.

From the actions taken in this procedure, the following have been established,

PROVEN FACTS

FIRST:

As stated in the public deed of elevation of social agreements granted by CAJA RURAL DE GIJÓN, ASTURIAN COOPERATIVE SOCIETY OF CREDIT,

(...)

It is governed by the provisions of its Statutes and, in matters not provided for therein, by Law 13/1989, of May 26, on Credit Cooperatives, its implementing regulations, and other provisions that, in general, regulate the activity of credit entities, applying, in a supplementary manner, cooperative legislation.

Furthermore, as provided in its Statutes, it enjoys its own legal personality and full capacity to act.

SECOND:

On April 26, 2024, CAJA RURAL DE GIJÓN submitted, along with the written allegations to the initiation agreement "Agreement to modify the data protection clause of the service provision contracts signed between CAJA RURAL DE GIJÓN and Rural Servicios Informáticos, S.L." dated August 27, 2019, signed on behalf of CAJA RURAL DE GIJÓN by the data controller.

In said Agreement it is specified:

(...)

In this agreement it is indicated that,

"The purpose of the Agreement is to establish the legal regime applicable to the processing of personal data that is processed or may be processed by the data processor, by virtue of the service provision contracts that are signed between the parties, and which are under the ownership and control of the data controller.

The data processing activities provided for are those strictly necessary for the provision of the services provided in the main contract. The treatments that could be carried out by RSI, the type of information to be processed, and the categories of data subjects whose data could be processed are defined."

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In the Agreement itself, it is indicated, in section 3 relating to the Obligations of the Data Processor, that:

"The Data Processor and all its personnel are obliged to:

- a) Use the personal data subject to processing, or those collected for its inclusion, only for the purpose of this assignment. Under no circumstances may the data be used for any other purpose, whether for its own or for third parties. To carry out any other activity aimed at the processing or use of the data files of the Data Controller, prior written consent from the latter will be necessary.
 - b) Process the data in accordance with the instructions of the Data Controller. (...)
- (...)"

Regarding the notification of "data security breaches," it is specified in section 3.3 that:

"The Data Processor shall notify the Data Controller, without undue delay, and in any case, before the maximum period of 36 hours, and through the DPO, of any breaches of the security of personal data under its charge of which it becomes aware, along with all relevant obligations for the documentation and communication of the incident. (...)"

Section 3.4 relating to security measures adds that:

"The Data Processor, in accordance with the provisions of Article 32, shall apply those technical and organizational measures appropriate to ensure a level of security adequate to the risk of processing detected in each case, considering the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the variable probability and severity risks for the rights of individuals at any given time.

In any case, it must implement mechanisms equivalent to those used by the Data Controller to:

- a. Ensure the ongoing confidentiality, integrity, availability, and resilience of the processing systems and services.
- b. Restore the availability and access to personal data quickly in the event of a physical or technical incident.
- c. Regularly verify, evaluate, and assess the effectiveness of the technical and organizational measures implemented to ensure the security of the processing.
- d. Pseudonymize and encrypt personal data, where appropriate.

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The technical and organizational measures to be implemented by the Processor are those reflected in Annex B of this agreement - "Security Measures."

The Processor is authorized to subcontract the companies reflected in Annex A of the Agreement -

"Subcontracting." The subcontractor, who also has the status of Processor, is likewise obliged to comply with the obligations established in the Agreement for the Processor and the instructions issued by the Controller.

Regarding the obligations of the Controller, it is indicated in section 4 of the Agreement:

"Corresponds to the Controller:

- a) "To provide the Processor with the necessary data for the provision of the service.
- b) In case it is legally required, to carry out an impact assessment on the protection of personal data of the processing operations to be carried out by the Processor.
- c) To carry out the necessary prior consultations.
- d) To ensure, beforehand and throughout the processing, compliance with the GDPR by the Processor.
- e) To supervise the processing, including the carrying out of inspections and audits." (the underlining is ours)

In section 5, the DPO of the Processor and the Controller is identified respectively.

Regarding CAJA RURAL DE GIJON, the DPO is listed as:

"Identification A.A.A.

Contact ***EMAIL.1

Regarding RURAL SERVICIOS INFORMATICOS, S.L., the DPO is listed as:

"Identification A.A.A.

Contact ***EMAIL.2

Section 6 of the Agreement addresses "Liability," stating that,

"If the Processor, or in its case, the contractors, breach this Agreement or the applicable regulations by determining the purposes and means of processing, they will be considered responsible for the processing concerning such processing.

In the event that a supervisory authority sanctions the Controller as a direct consequence of the Processor's failure to comply with the stipulations of this Agreement, the Processor shall indemnify the Controller as stipulated in the liability clause of the current framework contract between the parties."

(the underlining is ours)

THIRD:

In the "Agreement to modify the data protection clause of the service provision contracts," signed between CAJA RURAL DE GIJON and RSI, signed in Gijón on August 23, 2019, Annex B - Security Measures is included in the Agreement to modify the data protection clause of the service provision contracts, which indicates that RSI has the following certifications:

(...)

Furthermore, in the "Agreement to modify the data protection clause of the service provision contracts," it is indicated that RSI has the following measures:

(...)

FOURTH:

On December 12, 2022, a personal data breach of CAJA RURAL DE GIJON was reported to the Technological Innovation Division of this Agency, with entry number REGAGE22e00056863884. This notification was sent by RSI, the Processor of CAJA RURAL DE GIJON. Attached to this notification is the "Security Incident Analysis Report."

On January 10, 2023, CAJA RURAL DE GIJON made an additional notification to that described in the previous section, with entry number REGAGE23e00001618757.

FIFTH:

CAJA RURAL DE GIJON had the electronic banking application called Ruralvía Clásica for the purpose of providing online banking services to its customers.

CAJA RURAL DE GIJON wanted to change this application to a new electronic banking application, called Nueva Banca Electrónica (NBE).

(...)

On April 14, 2023, in response to the request made by the AEPD, RSI responded that:

"(...)".

SIXTH:

Regarding the establishment of a banner in the Ruralvía Clásica application that linked to the new NBE application and its operation, in the "Security Incident Analysis Report," dated December 9, 2022, which RSI provided concerning the personal data breach of CAJA RURAL DE GIJON, it is indicated:

"(...)".

Additionally, on April 14, 2023, in response to the request made by the AEPD in the context of the preliminary investigation proceedings, RSI responded that:

(...)

RSI, in its letter dated October 11, 2023, Response 3 Complaint AEPD of entry REGAGE23e00068900170, indicates that,

"(...)".

SEVENTH:

(...)

On April 14, 2023, in response to the request made by the AEPD in the context of the preliminary

investigation proceedings, a document 9 titled “Web Application Audit” was submitted, in which it is indicated (...):

(...)

EIGHTH:

(...)

NINTH:

Regarding how the personal data breach occurred, on April 14, 2023, RURALVÍA, in response to the information request made by this Agency, states the following,

(...)

Additionally, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided concerning the personal data breach of CAJA RURAL DE GIJON, it is indicated in section 1.4.2, “How was the problem detected or how did it happen?” that:

(...)

TENTH:

Furthermore, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided concerning the personal data breach of CAJA RURAL DE GIJON, in section 1.4.1, “What happened?”, it is explained that the personal data breach occurred due to a vulnerability in the SSO system, indicating that:

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(...)

ELEVENTH:

Regarding the attack pattern used by the cybercriminal, on April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings for RSI, it is indicated that,

(...)

Identical provisions are contained in section 1.4.2 of the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON.

TWELFTH:

Regarding the causes that allowed the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON, it is indicated in section 3, “Cause Analysis,” that:

(...)

THIRTEENTH:

In response to the information request made by the AEPD within the framework of the preliminary investigation proceedings, RSI responded on May 26, 2023, providing as document 8 an email dated September 28, 2022, prior to the increase in access volume (between November 10 and November 23 of the same month) and the detection of the personal data breach, sent by (...):

In the same vein, as indicated, on April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, RSI responded that,

(...)

On April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, a document 9 titled “Web Application Audit” was submitted, in which it was indicated that,

(...)

FOURTEENTH:

On April 14, 2023, in response to the request made by the AEPD within the framework of the preliminary investigation proceedings, a document 9 titled “Web Application Audit” was submitted, in which ***TOOL.1 was examined.

(...)

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FIFTEENTH:

Regarding the detection of the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON, it is indicated in section 1.4.1, “What happened?”, that:

“(...)”

Therefore, although the breach was detected on December 7, 2022, prior accesses to that date are recorded, with the highest volume of accesses occurring between November 10 and November 23, 2022.

Regarding the measures adopted on November 23, 2022, the aforementioned document indicates that,

(...)

Therefore, these measures were adopted before the personal data breach was detected (on December 7, 2022) and as a result of actions to enhance the security of electronic banking.

SIXTEENTH:

Regarding the mitigating measures applied after the personal data breach, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON, it states that,

“(...)”

SEVENTEENTH:

Subsequently, within the framework of the definitive implementation of the new NBE application, a series of actions are carried out, as noted in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON,

(...)

EIGHTEENTH:

Regarding the personal data accessed by the attacker, in the “Final Security Incident Analysis Report,” dated December 30, 2022, which RSI provided in relation to the personal data breach of CAJA RURAL DE GIJON, it indicates which personal data may have been accessed,

“4. The information that may have been accessed includes personal and contact data such as:

(...)

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NINETEENTH:

The notification forms of the breach, accompanied by the Security Incident Report prepared in all cases by RURAL SERVICIOS INFORMÁTICOS, S.L., the data processor, as stated in the preliminary investigation report dated November 27, 2023, determine that the number of individuals affected by the personal data breach of CAJA RURAL DE GIJON is (...).

TWENTIETH:

During the period of evidence collection referred to in the Tenth Fact, CAJA RURAL DE GIJON submitted a responsible declaration from Mr. B.B.B., of legal age, with National Identity Document number ***NIF.1, in his capacity as (...) of CAJA RURAL DE GIJON, S.C.C. HE DECLARES UNDER HIS RESPONSIBILITY (...)

TWENTY-FIRST:

According to the diligence dated January 22, 2024, in the file, the business volume (gross margin) of CAJA RURAL DE GIJON during the fiscal year 2022 amounts to 7,500,000 euros.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Preliminary Issues

Below is a detailed list of the relevant legal concepts for this Resolution Proposal, in accordance with the definitions in Article 4 of the GDPR (the relevant parts are highlighted):

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"Article 4 Definitions

For the purposes of this Regulation, the following definitions shall apply:

(...)

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

The processing in this case has consisted of a set of operations for the retrieval and consultation of the personal data of the data subjects.

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;

The legal entity that determines the purposes and means of processing is CAJA RURAL DE GIJON, as a provider of banking services, and the data subjects in this case are the clients linked to the banking entity through a contract. CAJA RURAL DE GIJON collects the clients' data and decides on the purposes and means of the set of operations performed on personal data by automated procedures.

8) "processor" or "processor": the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller;

(...)

CAJA RURAL DE GIJON has entrusted RURALVÍA S.L., by contract dated August 27, 2019, with the execution of the necessary security measures for the set of automated operations for the processing of clients' personal data, within the framework of its banking service contracts.

12) "personal data breach": a breach of security that results in the accidental or unlawful destruction, loss, or alteration of personal data...

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personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data;

A breach of personal data security has occurred due to unauthorized access by a third party (a hacker) to the personal data of CAJA RURAL DE GIJON's clients.

The entity carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means related to the processing of personal data, pursuant to Article 4.7 of the GDPR. Therefore, if it decides the "why" and the "how" personal data should be processed, it must assume its responsibility.

Moreover, the data controller must also implement the technical and organizational measures that ensure the security of personal data during processing. It must be able to demonstrate compliance with the GDPR and the LOPDGDD.

In this case, there is a recorded security incident, categorized as a personal data breach, involving unauthorized access to personal data.

It should be noted that the identification of a personal data breach does not directly imply the imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

Among the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f). Meanwhile, the security of personal data is regulated in Articles 32 and 33 of the GDPR, which govern the security of processing, notification to the supervisory authority, and communication to the data subject, respectively.

As previously mentioned, it is presumed that the data controller is the entity that has the actual capacity to exercise control over the data, determining the why and how the data should be processed.

III Description of the personal data breach

CAJA RURAL DE GIJON had the electronic banking application called Ruralvía Clásica to provide online banking services to its clients.

For a client to access the Ruralvía Clásica application and log in, they needed to enter their identifier, password, and NIF.

(...)

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IV Violation of Article 5.1.f) of the GDPR.

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

(...)

The facts revealed in this procedure constitute a personal data breach consisting of a loss of confidentiality of personal data, considering that the regulations on the protection of personal data have been violated. The present facts have CAJA RURAL DE GIJON as the data controller, as determined in the proven facts.

Thus, as stated in the seventeenth proven fact, regarding the personal data accessed by the attacker, the "Final Security Incident Analysis Report," dated December 30, 2022, indicates that,

"4. The information that may have been accessed includes personal and contact data such as:

(...)

Although the personal data breach was detected on December 7, 2022, prior accesses to that date are confirmed, with the highest volume of accesses occurring between November 10 and November 23, 2022.

In this regard, in the aforementioned report of December 30, 2022, as stated in the eighth and fourteenth proven facts, it is indicated in section 1.4.2, "How was the problem detected or how did it happen?" that:

(...)

The attacker was able to access the personal data of CAJA RURAL DE GIJON's clients due to the lack of appropriate technical and organizational measures prior to the occurrence of the personal data breach.

First, it should be noted that, as stated in the eleventh proven fact, regarding the causes that allowed the personal data breach, in the "Final Security Incident Analysis Report," dated December 30, 2022, in section 3, "Cause Analysis," it states:

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Secondly, in the proven fact fifteenth, the implemented mitigating measures are recorded, which highlight the absence of appropriate technical and organizational measures to prevent the occurrence of the breach, emphasizing, for these purposes,

(...)

In conclusion and in accordance with all that has been indicated, it has been established that the violation of the principle of confidentiality did indeed occur, as the attacker accessed multiple personal data of 7,326 clients of CAJA RURAL DE GIJON, which was possible due to the lack of appropriate technical and organizational measures highlighted by the aforementioned vulnerabilities. The documentation in the file provides clear evidence that CAJA RURAL DE GIJON violated Article 5.1.f) of the GDPR, "Principles relating to processing," by failing to adequately guarantee the confidentiality and integrity of personal data as a result of the security breach that occurred.

In accordance with the evidence available in this proposal for resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to CAJA RURAL DE GIJON, for violation of Article 5.1.f) of the GDPR.

V Qualification for the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to sanctions, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that they are: "Very serious

infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

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a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VI Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

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"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

According to the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR for which CAJA RURAL DE GIJON is held responsible, the following factors are considered concurrent:

- The nature, severity, and duration of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as confidentiality and integrity, which the regulation penalizes with the utmost severity since, as a consequence of the personal data breach, unauthorized third parties could access personal data, with the harm that this may entail.
- The number of affected parties: it is very high (...).
- Regarding the level of damages and losses caused: it must be considered high since the personal data (...)
- (...)
- The intentionality or negligence in the infringement. There is a lack of diligence in complying with the obligations imposed by data protection regulations, as it allowed access by a cybercriminal to personal data, violating its confidentiality; in this regard, reference can be made to the Supreme Court ruling of 17/10/2007, which, although issued before the GDPR came into effect, is perfectly extrapolable to the case we are analyzing. The ruling, after mentioning that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant is constant and..."

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The abundant handling of personal data must emphasize the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2, b) of the GDPR).

- The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the claimed entity, the processing of personal data is essential; therefore, given its purpose and business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

For the purpose of deciding on the proposal for the fine and its amount, in accordance with the available evidence, taking into account the criteria of Article 83.2 of the GDPR regarding the committed infringement, violation of Article 5.1.f) of the GDPR, it is considered appropriate to propose a sanction of 95,000 euros.

VII Violation of Article 32.1 of the GDPR

Article 32 of the GDPR "Security of processing" establishes that:

- "1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context,

and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

Upon reviewing the allegations made by the claimed party, and in consideration of the same, reviewing the documentation in the administrative file and that provided by the claimed party, it is evident that all the technical and organizational security measures whose absence has been proven, directly enabling the personal data breach, have not resulted in a violation, in this specific case, of Article 32 of the GDPR as the absence of other independent technical and organizational security measures unrelated to the personal data breach has not been substantiated.

VIII Violation of Article 33 of the GDPR

Article 33 of the GDPR, “Notification of a personal data breach to the supervisory authority,” establishes that,

“1. In the event of a personal data breach, the controller shall notify the competent supervisory authority in accordance with Article 55 without undue delay and, where feasible, no later than 72 hours after becoming aware of it, unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons. If the notification to the supervisory authority does not take place within 72 hours, it shall be accompanied by the reasons for the delay.

2. The processor shall notify the controller without undue delay of any personal data breaches of which it becomes aware.

3. The notification referred to in paragraph 1 shall, at a minimum:

- a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of data subjects affected, and the categories and approximate number of personal data records affected;
- b) communicate the name and contact details of the data protection officer or another contact point where more information can be obtained;
- c) describe the likely consequences of the personal data breach;
- d) describe the measures taken or proposed by the controller to remedy the personal data breach, including, where appropriate, the measures taken to mitigate the possible adverse effects.”

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4. If it is not possible to provide the information simultaneously, and to the extent that it is not, the information shall be provided gradually without undue delay.

5. The data controller shall document any breach of personal data security, including the facts related to it, its effects, and the corrective measures taken. Such documentation will allow the supervisory authority to verify compliance with the provisions of this article.

On October 21, 2024, it was agreed to open a testing period in which point 3 states: It is agreed to require CAJA RURAL DE GIJON to provide the following information and/or documentation:

"Provide documentation proving that, if applicable, it had instructed or given instructions to its data processor for the notification to the AEPD of the personal data breach subject to this sanctioning file (art. 33 GDPR). Proof of both the instruction and its terms and date. The result of this testing may lead to the conduct of further tests. In your response, you must indicate the reference of the file that appears in the heading of this document."

The requested party submitted in response to this requirement on November 5, 2024, the following documents:

Document number 1: Email dated December 9, 2022, where RSI, in its capacity as data processor for CAJA RURAL DE GIJON, communicated the security incident to it, indicating that they were preparing a report on it, indicating next steps (notification to the AEPD and communication to the affected parties) and requesting validation by CAJA RURAL DE GIJON as the data controller.

Document number 2: Responsibility statement dated November 4, 2024, from Mr. B.B.B., (...) in which he states that,
"(...)"

After analyzing the documentation submitted by CAJA RURAL DE GIJON referred to in the Twentieth Proven Fact, RSI (responsibility statement in a private document by the highest responsible person of the entity, based on a request for prior instructions from the data processor and with the immediate subsequent action of notifying the personal data breach to the AEPD) it is determined that the requested party has provided in response to the testing conducted by this Agency on October 21, 2024, regarding the accreditation of the instructions given to its data processor, to proceed with the notification on its behalf to the AEPD of the personal data breach subject to the aforementioned procedure, in accordance with Article 33 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter "GDPR").

Therefore, it must be concluded that, after analyzing the investigated facts, the allegations made by the requested party, and the evidence provided in the procedure, considering the concurrent circumstances in the specific case, the filing of the alleged infringement in relation to Article 33 of the GDPR would be appropriate.

IX Response to the allegations made regarding the initiation agreement

In relation to the allegations made by CAJA RURAL DE GIJON regarding the initiation agreement, we proceed to respond to them in the order in which they are presented in their writing:

"FIRST. ON THE ACCUMULATION OF THE PROCEDURES TO THE ENTITIES OF THE GROUP."

1. Preliminary considerations

According to CAJA RURAL DE GIJON: "All of the initiation agreements in the files that have just been referenced arise, as indicated, from the security breach analyzed by the Initiation Agreement" and subsequently states that "we are faced with a single fact, referring to a single breach, suffered during the development of the aforementioned tool carried out by RSI in its capacity as data processor and which, however, is fragmented by the AEPD into twenty-six differentiated procedures processed against twenty-six different entities."

In response to these preliminary considerations, it should be noted that the requested party confuses the fact that the factors that determined the vulnerability are similar in all the procedures initiated by this Agency with the assertion that only a single personal data breach has occurred.

We are faced with incidents that have affected (...) which are completely independent, both legally and economically. Each of these entities is responsible for the data processing of its clients in a differentiated manner, and, consequently, there are as many personal data security breaches as there

are data controllers who have failed to comply with the obligations imposed by the GDPR. Each entity is responsible for the processing of its own data and regarding its own clients.

All the entities referred to by the requested party in their allegations had contracted with RSI, (...). However, that RSI was the same data processor for all the Entities does not determine that one can speak of "a single fact, referring to a single breach."

Each entity, as the data controller of its clients, autonomously made the decision to contract with RSI as the data processor, for which each of them signed its own data processing agreement, on different dates, signed by different persons with sufficient power for this purpose in each case.

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one of the rural banks and with reference to their different data protection delegates, which are not coincident.

Furthermore, as also stated in the proven facts, both the "Security Incident Analysis Report," dated December 9, 2022, and the "Final Security Incident Analysis Report," dated December 30, 2022, have been carried out individually for each of the rural banks, containing their specific details.

Likewise, once the personal data breach occurred, the actions of each of the entities were not the same, with each acting autonomously, both in relation to the AEPD (some banks notified the personal data breach directly while others entrusted their data processor to carry it out) and with respect to their respective clients, independent of the actions of the others.

2. On the accumulation of administrative procedure files.

In this allegation, the responding party considers that: "The legal regime of the accumulation of procedures, as well as processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instructional work that must be carried out is favored by the appreciation of the issue raised as a whole and the possibility that the joint viewing work allows for a better assessment of the elements that enable the application of the norm to the specific case."

Article 57 of the LPACAP on the accumulation of procedures establishes that: "The administrative body that initiates or processes a procedure, regardless of the manner of its initiation, may, ex officio or at the request of a party, order its accumulation with others that have substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure. No appeal shall proceed against the agreement of accumulation" (the underlining corresponds to the AEPD). Consequently, both the administrative body that initiates the procedure and the one that processes it may order its accumulation with other procedures that have substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure.

Article 57 of the LPACAP grants administrative bodies the authority for better management of the procedures they process, allowing for their accumulation as long as they have substantial identity or intimate connection among them. Therefore, it is a possibility available to the Administration, which is not obliged to proceed with the accumulation if requested, although it is required to decide on the matter with justification, as occurs in the present sanctioning procedure.

3. On the response to the allegation seeking the accumulation of sanctioning procedures.

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In this allegation, the responding party considers that: "The legal regime of the accumulation of procedures, as well as processes, in the administrative sphere responds to the central idea of connectivity, that is, that the instructional work that must be carried out is favored by the appreciation of the issue raised as a whole and the possibility that the joint viewing work allows for a better assessment of the elements that enable the application of the norm to the specific case."

It should be noted that the assertions of the responding party are not supported by either Article 57 of the LPACAP or by any type of jurisprudence or doctrine that attributes to accumulation the purpose of providing the decision-making body with a better assessment of the elements of the case.

The institution of accumulation is a technique of administrative simplification that allows the competent body to process and resolve a main procedure the possibility of accumulating it with others that have substantial identity or intimate connection, for the purposes of simultaneous processing and resolution. The instrumental nature of accumulation is determined by the first limit established by Article 57 of the LPACAP, which is that the body "must be the same body that processes and resolves the procedure." It is a procedural act that cannot be challenged, as established by Article 57 of the LPACAP itself, unlike what is established in Article 112.1 of the same regulation, which does allow for the challenge of other procedural acts when these "directly or indirectly decide the substance of the matter, determine the impossibility of continuing the procedure, produce defenselessness or irreparable harm to legitimate rights and interests."

However, when the LPACAP excludes the possibility of appeal, it is because it applies to the accumulation of procedures, as a procedural act, none of the assumptions of Article 112.1 of the LPACAP that we have just reproduced.

With these arguments as a starting point, the allegations made by the responding party below must be completely dismissed, to which a specific response will also be provided.

A) Existence of "intimate connection" or "substantial identity."

The responding party reiterates the idea referred to in the preliminary considerations of this FIRST allegation, stating that "there was a single breach of personal data security, notified by each of the responsible parties (directly or through their data processor RSI)." It continues to assert that "the connectivity, in the present case, therefore derives from the fact that it is a matter of clarifying responsibility for twenty-six legal entities, but for the same fact."

As already substantiated in the response to the preliminary considerations of this FIRST allegation, it cannot be said that there was a single breach of personal data; rather, there have been as many breaches of personal data as there are entities, all of which are independent of each other, each responsible for its own processing and regarding its own clients, whose system has suffered a security breach.

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For the party being claimed against, there is a single fact upon which responsibilities can be demanded: the security incident concerning information technology. However, beyond the data breach itself, there has been a loss of confidentiality of the personal data of the clients of each of the entities, which cannot be encompassed as a single fact or as the same fact.

Likewise, it is necessary to differentiate the facts related to the actions taken after the knowledge of the security breach by each of the entities. Some entities directly notified the AEPD of the breach, while in others, the communication was made by the data processor at the request of each of the data controllers (in different ways and at different times).

Finally, some entities communicated the loss of confidentiality of their personal data to the affected individuals, complying with the obligation established in Article 34 of the GDPR, while other entities did not send any type of communication.

All these diverse factual elements determine that it cannot be said that, beyond the same IT vulnerability, there exists an "intimate connection" or "substantial identity" that justifies the accumulation of the proceedings.

Regarding the ruling of the TSJ Castilla-La Mancha cited in the allegations, the following clarifications should be made:

1) There is no compliance with an obligation by several persons jointly, therefore the assumption of Article 28.3 of Law 40/15 does not apply.

According to Article 28.3 of Law 40/2015, of October 1: "When the compliance with an obligation established by a norm with the rank of Law corresponds to several persons jointly, they shall be jointly liable for the infringements that may be committed and for the sanctions that are imposed. However, when the sanction is monetary and it is possible, it shall be individualized in the resolution based on

the degree of participation of each responsible party.”

In the present case, it cannot be said that there exists joint liability, as it does not concern a joint obligation of CAJA RURAL DE GIJON with the other entities referred to in its written allegations. The facts constituting the infringement attributed to CAJA RURAL DE GIJON are in its capacity as data controller, in accordance with the provisions of Article 4 of the GDPR, so the compliance with the principles and obligations established in the GDPR regarding the data processing of its clients corresponds to it individually, not jointly with the other entities, since, furthermore, there is no joint liability in the GDPR.

It should also be noted that the fine imposed on each entity depends on its own circumstances, such as the number of affected clients or its business volume.

The figure of joint controllers of processing, regulated in Article 26 of the GDPR, would also not be applicable in this case, “when two or more controllers determine...

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together the objectives and means of processing will be considered jointly responsible for the processing.” The objectives and means of processing have been determined by CAJA RURAL DE GIJON independently of the other entities, in its capacity as the sole responsible party for the processing of personal data of its clients.

Finally, there is also no situation in CAJA RURAL DE GIJON concerning the other entities that corresponds to the case described in the judgment, in which “the Administration imputes different forms of cooperation or collusion among the three defendants in relation to the same facts.” Here, there can be no talk of any type of cooperation or collusion regarding the facts; it is simply the responsibility of each of the Rural Banks and their relationship with the data processor, due to the regime established in the GDPR, according to which the controller, in this case, each of the Rural Banks, has control and authority over the processing of personal data and assumes responsibility for compliance with the obligations imposed by the GDPR. For its part, the data processor (RSI) must only process the data in accordance with the instructions received from the controller. It cannot determine the purposes and means of processing; its function is to execute the processing as established by the controller.

2) The separate processing of the files does not prevent each entity from presenting its allegations. In the judgment of the TSJ of Castilla La Mancha referred to by CAJA RURAL DE GIJON, in the Third Legal Basis, it is stated that the plaintiff requested that all procedures be consolidated in order to adequately exercise the right of defense, “...since they referred to the same facts, and it was expressly warned that processing them separately would constitute a serious violation of the right of defense as it would prevent knowledge of the allegations of the other parties involved and the documents they might submit, all of which could have relevance for the legal qualification of the facts, the determination of the existence or not of an infringement, and the responsible party for it.”

The non-consolidation of procedures cannot produce any of the harms mentioned in that paragraph of the judgment.

Regarding the documents submitted to the procedure, those relating to the security incident, a series of documents were provided by the data processor during the investigation proceedings (let us remember that both the “Security Incident Analysis Report,” dated December 9, 2022, and the “Final Security Incident Analysis Report,” dated December 30, 2022, were prepared individually for each of the rural banks, containing their own specificities) whose access to the affected entity has been guaranteed by sending, upon request, a copy of the file. Those documents submitted by the entities responsible for processing, which affect them individually, will be taken into consideration in the corresponding procedure.

3) CAJA RURAL DE GIJON reiterates the need for the “accumulated analysis of the files,” when the judgment of the TSJ of Castilla La Mancha does not include this idea.

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The need for accumulation is based on considerations other than those expressed by CAJA RURAL DE GIJON. As we have analyzed:

- Reference is made to the access to documents in the file that may be provided by different responsible parties, a matter that we see is guaranteed here.
- The possibility of establishing joint liability is mentioned, which, as we have substantiated, does not apply under the regime established in the GDPR. We must not confuse joint liability under Article 28 of the LRJSP with the co-responsibility under Article 26 of the GDPR, which also does not apply in this case, since, as we stated, in no case are the other Rural Banks co-responsible for the processing of customer data of other entities.
- There is no type of cooperation or collusion among the various Rural Banks in the facts. These figures must be ruled out due to the relationship between the Rural Banks, which are independent entities, each responsible for the processing of their customers, nor, as we have previously stated, regarding the special regime established by the GDPR concerning the relationship between the data controller and the data processor.

B) That the same body is responsible for the processing and resolution of the procedure.

The processing of the various sanctioning procedures corresponds to the same body, as CAJA RURAL DE GIJON points out, which does not determine the mandatory nature of the decision to accumulate the procedures, especially when there are no circumstances that imply the defenselessness of CAJA RURAL DE GIJON.

4. Connectivity in the sanctioning field with the guarantees of Articles 24 and 25.1 of the Spanish Constitution.

In this allegation, CAJA RURAL DE GIJON points out that the Constitutional Court has declared that both the substantive principles of Article 25.1 CE and the procedural guarantees of Article 24.2 CE are applicable, with certain nuances, to the exercise of the sanctioning power.

4.1. General aspects related to the instruction and its essential functionality.

A) Linkage of the instruction as a consequence of the factual unity.

CAJA RURAL DE GIJON cites a ruling from the Supreme Court, which states that “the initiation of a single sanctioning procedure for the commission of the same infringing act, with the aim of determining the degree of participation of each alleged responsible party in the commission of the infringement and ensuring that the resolution of the file is coherent...” According to CAJA RURAL DE GIJON, “In that case, the appellant argued that, since two files were processed, each of the responsible parties was unaware of what was in the other that could benefit or harm them. This is a concrete example of the difficulties that arise in terms of the right to defense in cases of separate processing.”

As previously justified, there are as many breaches of personal data as there are data controllers, and we cannot speak of a single infringing act, but rather of a series of infringing acts attributable to a series of independent entities concerning the processing for which they are responsible regarding their customers; nor can we speak of “degree of participation” among the various entities, nor in relation to the data controller-data processor relationship.

Regarding the documents that are submitted to the procedure, those referring to the security incident, a series of documents were provided by the data processor during the investigation proceedings, whose access to all affected entities has been guaranteed through the sending, upon request, of a copy of the file. Moreover, RSI provided the “Security Incident Analysis Report,” dated December 9, 2022, as well as the “Final Security Incident Analysis Report,” dated December 30, 2022, in a manner individualized for each of the rural banks, containing their specificities.

Those documents submitted by the responsible entities that affect them individually will be taken into consideration in the corresponding procedure. And any other documents that may constitute evidence relevant to the facts will be duly incorporated into the other files ex officio, in accordance with the

provisions of Article 75 of the LPACAP, “the necessary instructional acts for the determination, knowledge, and verification of the facts on which the resolution must be pronounced will be carried out ex officio.”

B) Connectivity as a fundamental prerequisite for the exercise of the right to defense.

According to CAJA RURAL DE GIJON, each of the sanctioning procedures becomes “sealed” and the evidence, allegations, and expert opinions conducted in one cannot be presented contradictorily. However, a paragraph from the ruling transcribed by CAJA RURAL DE GIJON is fully applicable to respond to this allegation: “it is not specified to what extent their defense had been ‘harmed’,” and to reject it, just as the Supreme Court understands “that the decision of the court of first instance is correct, which considers that the initiation of sanctioning files against each of the companies is justified... due to the clear differentiation of the behaviors attributed and the lack of demonstration that real defenselessness had occurred -as reasoned in the contested ruling.”

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The Constitutional Court in its ruling No. 210/1999, dated November 29, states that constitutionally relevant defenselessness is the situation in which, following the infringement of a procedural norm, one of the parties is prevented from exercising their right to defense by eliminating or limiting their power, either to assert rights and interests for them to be recognized, or to dialectically respond to opposing positions in the exercise of the principle of contracting.

As an essential characteristic of defenselessness, it must be material and not merely formal, that is, it is not sufficient for there to be a defect or procedural infringement; there must have been an effective and real right to defense (ruling of the Constitutional Court No. 90/1988, dated May 13).

Well, beyond a generic allegation of the potential defenselessness that could arise from the non-accumulation of the proceedings, CAJA RURAL DE GIJON is unable to present a single defect or procedural infringement that has effectively limited its right to defense, when the allegations presented by the affected Rural Banks regarding the security incident are substantially similar, and they have had access to all the documentation that affects them in a common manner. In any case, the instructing body will incorporate into the procedure and inform CAJA RURAL DE GIJON of any other documents that may constitute evidence relevant to the facts.

4.2.- The intimate connection as a requirement for the individualization of responsibility for the same facts.

CAJA RURAL DE GIJON argues that, since we are dealing with a single breach of personal data, processing separate proceedings for each of the responsible entities may eventually lead to the determination of diverse responsibilities. The intimate connection translates into the principle of uniqueness in determining the concurrence of the facts when, as CAJA RURAL DE GIJON claims, there are unique facts that result in a single breach of personal data.

As previously reasoned, it is not appropriate to speak of a single breach of personal data, but rather as many as there are data controllers who have suffered the security incident concerning their clients' data.

There cannot be different degrees of responsibility between CAJA RURAL DE GIJON and the other entities. Each of the data controllers will have a degree of responsibility that must be determined individually regarding compliance with data protection regulations, without any type of cooperation in the commission of the infringement among the different Rural Banks that could determine different degrees of responsibility among the entities, as CAJA RURAL DE GIJON claims.

CAJA RURAL DE GIJON continues its reasoning by stating that “responsibility cannot be individualized without first objectifying the reproach.”

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Sanctioning and this cannot be projected in 26 procedures with its own dynamics, its own evidence...". Abstract arguments continue to be made, such as objectifying the sanctioning reproach, regarding its own dynamics and "its own evidence", when there have not even been allegations questioning the facts and the evidence contained in the initiation agreement, nor has there been a request for the reception of evidence in the procedure.

The fact that "a single investigation action" has been processed and that in this no requirement has been made against the entities responsible for the processing but rather in relation to the processor (RSI), does not imply the "unitary factual determination", as argued by CAJA RURAL DE GIJON. That the inspection actions were directed to require information from the processor does not determine that subsequently a single procedure must be initiated to clarify the administrative responsibilities. It should be noted that Article 53, "Scope of the research activity", of the LOPDGDD does not impose that these must necessarily be carried out in relation to the data controller. Therefore, there is no obligation to investigate all controllers that carry out the processing in question. Inspectors can obtain evidence by consulting and requesting information from the processor if they deem it appropriate.

4.3 Impact on the fundamental right to good administration

According to CAJA RURAL DE GIJON, the accumulation becomes an obligation in case the absence of this could harm the rights of the administered, particularly those recognized in Article 24 of the Constitution, thus violating the right to good administration in accordance with Article 41 of the Charter of Fundamental Rights of the European Union.

In the previous allegations, the differences between the behaviors attributed to the Rural Savings Banks have been motivated, and that no type of defenselessness has been caused to CAJA RURAL DE GIJON in the processing of the present procedure, having had access to all the documents in the file. In fact, CAJA RURAL DE GIJON has not justified any type of defenselessness, nor does it point out any specific fact by which it has been caused defenselessness.

Finally, reiterate that we are not facing the same facts, but rather a common technical problem that caused a security incident in the information system of each of the responsible entities in relation to their processing of personal data (all of them legally and economically independent from each other), which has produced a series of personal data breaches, not a single personal data breach, but a personal data breach in each of the Rural Savings Banks, which result in the alleged commission of a series of infringements by each of the different data controllers in relation to their processing of personal data and the rights and freedoms of their clients.

"SECOND. THE NON-EXISTENCE OF GUILT OF CAJA RURAL DE GIJON IN THIS CASE"

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CAJA RURAL DE GIJON has invoked various arguments to justify the absence of culpability of its conduct.

First, it states that it is not involved in the facts attributed to it, since in the present case, the processing is carried out by a data processor; which, in turn, is the entity responsible for the entities against which the proceedings are directed; and that the personal data protection regulations not only impose obligations related to compliance with the principle of confidentiality and the adoption of necessary security measures on the data controller but also, when the processing is carried out on behalf of the controller by a data processor, on the latter.

In this regard, it is worth recalling that the figure of the data processor responds to the need to address phenomena such as the outsourcing of services by companies and other entities, so that in those cases where the data controller entrusts a third party with the provision of a service that requires the processor to process personal data on its behalf, the processing or operations of the processing are carried out by the processor, in the name and on behalf of the controller, as if it were the latter carrying it out.

Therefore, the existence of a data processor depends on a decision made by the data controller, who may decide to carry out certain processing operations themselves or to contract all or part of the processing with a processor.

That is to say, the processor, in order to be one, does not have any own interest regarding the result of the processing subject to the assignment, without prejudice to the economic compensation received for the service provided, which is what occurs in the present case. The processors have no own interest; they act on behalf and in the name of the controller, following their orders and for their purposes, and this is what determines that they are processors from the outset.

This means that the data controller is responsible for actions contrary to the GDPR carried out by its data processors, unless the latter have acted as true data controllers, deciding on the purposes and means of the processing, which has not occurred in the present case.

Thus, the CJEU ruling of December 5, 2023, issued in case C-683/21, regarding the question of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to the processing operations carried out by a processor, determines that,

“83 Regarding, secondly, the question of whether an administrative fine can be imposed under Article 83 of the GDPR on a data controller in relation to the processing operations carried out by a processor, it is necessary to recall that, according to the definition in Article 4, point 8, of the GDPR, a processor is understood to be ‘the natural or legal person, public authority, service, or other...’”

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"entity that processes personal data on behalf of the data controller."

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Given that, as indicated in paragraph 36 of this judgment, a data controller is responsible not only for all personal data processing that it carries out itself but also for processing carried out on its behalf, an administrative fine may be imposed on that controller under Article 83 of the GDPR in a situation where personal data is subject to unlawful processing and it is not the controller, but rather a processor it has engaged, that has carried out the processing on its behalf.

85

However, the liability of the data controller for the actions of a processor cannot extend to situations where the processor has processed personal data for its own purposes or where it has processed such data in a manner incompatible with the framework or modalities of processing as determined by the data controller or in a manner that cannot reasonably be considered to have been consented to by that controller. Indeed, in accordance with Article 28, paragraph 10, of the GDPR, the processor must, in that case, be considered responsible for the processing with respect to that processing.” (the emphasis is ours)

To the above, we must add the recent SAN of February 8, 2024, rec. 0002250/2021, regarding TELEFÓNICA MÓVILES ESPAÑA S.A.U, in which it is determined that,

“Well, the appellant company is the data controller, as it determines the purpose and means of the processing carried out for the purposes indicated in its Privacy Policy: “At Movistar, we process customer or user data for the provision of the service, as well as for other purposes that the customer allows or authorizes in the terms informed in this Privacy Policy or in the specific Conditions of each contracted Movistar Product or Service.”

While the companies ATENTO TELESERVICIOS ESPAÑA, S.A.U., CATHPONE-NET, S.L., and THADER TELECOMUNICACIONES S.L., are considered data processors.

What has been stated derives from the contracts signed by the acting party with the aforementioned companies.

....

Well, it has not been demonstrated that the aforementioned companies, as data processors of the

acting party, have determined the purposes and means of the processing, nor have they used the data of that party's customers for their own purposes, nor have they interacted with the data subjects.

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alien to the structure and trade name of the appellant company, but rather have acted under the name of the plaintiff party to fulfill its purposes, using its systems to carry out operations with clients.

Therefore, it is not appropriate to invoke Article 28.10 of the GDPR for a presumed attribution of responsibility to the processors that also implies the exoneration of the data controller, that is, of the company here appealing. On the other hand, according to the aforementioned contracts, there is a clause that transfers to them the possible sanctions that the plaintiff company may suffer for non-compliance with obligations regarding data protection.” (the underline is ours)

On the other hand, the Guidelines 7/2020 of the EDPB on the concepts of “data controller” and “data processor” in the GDPR, version 2.0 adopted on July 7, 2021, determine that,

“30 Following the line of the fact-based approach, the word ‘determine’ means that the entity that truly exercises decisive influence over the purposes and means of the processing is the controller.

Generally, the processing contract establishes who is the determining party (the data controller) and who is the party that follows the instructions (the data processor). Even when the data processor offers a service that is defined in advance in a specific way, it must present the data controller with a detailed description of the service, and the data controller must make the final decision on the approval of how the processing will be carried out and request any changes it deems necessary. Furthermore, the data processor cannot modify, at a later time, the essential elements of the processing without the approval of the controller.

...

39. The question is where to draw the line between the decisions reserved for the data controller and those that can be left to the discretion of the processor. It is evident that decisions regarding the purpose of the processing must always correspond to the controller.

40. Regarding the determination of the means, it is necessary to distinguish between essential and non-essential means. Essential means are traditionally and inherently reserved for the data controller. These must be mandatorily determined by the data controller, although the determination of non-essential means may also be left in its hands. Essential means are closely linked to the purpose and scope of the processing, such as the type of personal data processed (“What data will be processed?”), the duration of the processing (“How long will it be processed?”), the categories of recipients (“Who will have access to the data?”) and the categories of data subjects (“To whom do the processed personal data belong?”). In addition to being related to the purpose of the processing, essential means are closely linked to the question of whether the processing is lawful, necessary, and proportionate. The means

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Non-essential decisions are related to more practical aspects of the processing itself, such as the choice of a particular type of hardware or software or the decision regarding the details of security measures, which can be left to the processor.

41. Although decisions regarding non-essential means can be left to the processor, the controller must still stipulate certain elements in the contract with the processor: for example, regarding the security requirement, it may be ordered to adopt all measures required under Article 32 of the GDPR. The contract must also establish that the processor will assist the controller in ensuring compliance with, for example, the provisions of Article 32. In any case, the controller remains responsible for implementing appropriate technical and organizational measures to ensure and be able to demonstrate that the

processing is in compliance with the Regulation (Article 24). To this end, the controller must take into account the nature, scope, context, and purposes of the processing, as well as the risks to the rights and freedoms of natural persons. For this reason, the controller must have complete information about the means used, as this will enable them to make an informed decision in this regard. To demonstrate the legality of the processing, it is advisable to document, in the contract or another legally binding instrument between the controller and the processor, at least the necessary technical and organizational measures.

...

74. The GDPR establishes specific obligations that directly bind processors, as specified in section 1 of subsection II of these guidelines. A processor can be held liable or sanctioned when it fails to comply with these obligations or acts outside or against the legal instructions of the controller.

...

80. Secondly, the processing must be carried out on behalf of a controller, but not under its direct authority or control. Acting "on behalf of" someone means serving the interests of another and refers to the legal concept of "delegation." In the case of data protection regulation, the role of the processor is to apply the instructions given by the controller, at least concerning the purposes of the processing and the essential elements of the means. The legitimacy of the processing under Article 6 and, if applicable, Article 9 of the Regulation derives from the activity of the controller, and the processor must only process the data following the instructions given by the controller. Nevertheless, as previously indicated, the instructions of the controller may leave some margin of discretion regarding how best to serve the interests of the controller, allowing the processor to choose the most appropriate technical and organizational means.

81. Acting "on behalf of" someone also means that the processor cannot carry out the processing for its own purposes. As stipulated...

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In Article 28, paragraph 10, the data processor will violate the GDPR when it does not adhere to the instructions of the controller and begins to determine its own purposes and means of processing. In such cases, the data processor will be considered responsible in relation to such processing and may be sanctioned for failing to comply with the instructions of the controller." (the underlining is ours) Well, in the specific case being examined, and in light of the documentation in the file, it is noted that, for the provision of IT services, CAJA RURAL DE GIJON has entered into an "Individualized and Specific Service Provision Contract" with RSI.

Furthermore, it has also entered into the framework of the previous contract the "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DE GIJON and RURAL SERVICIOS INFORMÁTICOS, S.L." relating to CAJA RURAL DE GIJON, which was signed on August 27, 2019, by Mr. C.C.C., on behalf of CAJA RURAL DE GIJON (data controller).

In this regard, in this "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DE GIJON and RURAL SERVICIOS INFORMÁTICOS, S.L.", CAJA RURAL DE GIJON is identified as the data controller and RSI as the data processor.

Additionally, this "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DE GIJON and RURAL SERVICIOS INFORMÁTICOS, S.L." defines the processing activities that could be carried out by RSI on behalf of CAJA RURAL DE GIJON, the type of information to be processed, and the categories of data subjects whose data could be processed.

It is also determined that the security measures that must be applied by RSI to ensure an adequate level of security in accordance with the provisions of Article 32 of the GDPR are those established in Annex B of the "Agreement to Modify the Data Protection Clause of the Service Provision Contracts between CAJA RURAL DE GIJON and RURAL SERVICIOS INFORMÁTICOS, S.L."

We must also highlight that it is stated in Section 6 of the Agreement regarding "Liability" that,

"If the Processor, or if applicable, the contractors, violate this Agreement or the current regulations by

determining the purposes and means of processing, they will be considered responsible for the processing in relation to such processing.

In the event that a supervisory authority sanctions the Data Controller as a direct consequence of the Data Processor's failure to comply with the stipulations of this Agreement, the Processor will indemnify the Data Controller as stipulated in the clause of

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"responsibility of the current framework contract between the parties" (the underlining is ours).

This implies, conversely and in accordance with data protection regulations, the aforementioned rulings, and Guidelines 7/2020, that the data controller is responsible for the actions carried out by its data processor unless the latter determines the purposes and means, resulting in the fact that this last issue has not been proven in the proceedings conducted.

Therefore, in accordance with the above, CAJA RURAL DE GIJON is the data controller for the processing that is carried out, it is the one who has decided to entrust a data processor to carry it out on its behalf and for its account, it is the entity that has the true capacity to exercise control over the processing of personal data, which determines what personal data will be processed on its behalf and for its account, the why and how these should be processed, as it defines the purpose of the personal data processing that its activity encompasses and chooses the means it deems appropriate.

And in accordance with all of the above and for the specific case, CAJA RURAL DE GIJON is

responsible for the infringement of the GDPR even if the incident occurred within its data processor.

In this regard, in the very Agreement of Initiation, it is indicated in section 4 relating to the Obligations of the Data Controller that:

"It is the responsibility of the data controller:

- a) To provide the Data Processor with the necessary data for the provision of the service
- b) If legally required, to carry out a data protection impact assessment of the processing operations to be carried out by the Data Processor.
- c) To carry out the necessary prior consultations.
- d) To ensure, beforehand and throughout the processing, compliance with the GDPR by the Data Processor.

- e) To supervise the processing, including conducting inspections and audits." (the underlining is ours)

This is directly related to the principle of proactive responsibility of the data controller provided for in Article 5.2 of the GDPR, which establishes that "the data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating it ("proactive responsibility")." This means that the controller must ensure the effective application of the principles of processing both at the time of determining the means of processing and during the processing itself, whether it carries out the processing of personal data directly or entrusts a data processor to carry it out on its behalf (for the purposes of data protection regulations, it is the same), through the articulation of a series of technical and organizational measures of all kinds, which must be subject to periodic review and updating. This implies that the aforementioned controller is the one who assumes its own responsibility by directing, reviewing, and coordinating the processing, including that of the personnel and that of the data processor providing services to it.

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The Opinion 3/2010, from the Article 29 Working Party (WP29) -WP 173- issued during the validity of the repealed Directive 95/46/EC, whose provisions are currently applicable, states that the "essence" of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the data protection standards are met in the context of processing

operations and to have available documents that demonstrate to the data subjects and the supervisory authorities what measures have been adopted to achieve compliance with data protection standards. For these purposes, consideration is given to what is stated in Recital 74 of the GDPR,

“The responsibility of the data controller must be established for any processing of personal data carried out by them or on their behalf. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risks to the rights and freedoms of natural persons.” (the emphasis is ours)

Completing the above and in development of Article 5.2 of the GDPR, Articles 24 and 25 of the same legal text should be cited, the latter indicating regarding “Data protection by design and by default” that the fundamental right to the protection of personal data is much more than mere technology, as its focus is on the risks to the rights and freedoms of data subjects arising from the processing of personal data,

“1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed...”

CAJA RURAL DE GIJON seems to maintain that the responsibility lies with the processor with whom it signed a contract and under which it was obliged to implement appropriate security measures according to the risk; however, it is worth recalling that the personal data breach occurred as 43/61

As a consequence of the decision of CAJA RURAL DE GIJON (...), subscribing for this purpose the corresponding data processing agreement with RSI where CAJA RURAL DE GIJON established the appropriate conditions.

And this is in addition to what has been stated by this Agency in the preceding paragraphs regarding that CAJA RURAL DE GIJON has determined the purposes and means of the processing, that it is responsible for the processing, that it is liable for the personal data breach in this case due to the processing actions carried out by its data processor on its behalf, and that it is subject to the obligations of the GDPR, especially concerning proactive responsibility.

This is the responsibility of CAJA RURAL DE GIJON since it is the data controller and has the obligation to integrate and deploy data protection within all that constitutes its organization, in all its areas of action, whether affecting its employees or its data processors. It must be kept in mind that ultimately the determining purpose is to guarantee the protection of the data subject, as the focus is on the risks to the rights and freedoms of the data subjects arising from the processing of personal data carried out by the data controller.

Therefore, the data controller must carry out a risk analysis of the rights and freedoms of individuals in data processing, implementing appropriate technical and organizational measures to apply the principles of data protection and integrate the necessary guarantees in the processing, in order to comply with the requirements of the GDPR, being able to demonstrate that the processing is in accordance with the provisions of the aforementioned regulation. And in light of the principle of proactive responsibility (art. 5.2 GDPR), the data controller must be able to demonstrate that it has taken into account all the elements provided for in the GDPR.

Thus, all of this merely reflects a lack of diligence on the part of the investigated entity in ensuring adequate security relative to the risks of the data processing it carries out. In this regard, it should not be forgotten that the affected database contains personal data of thousands of clients, which

constitutes large-scale processing, to which access is, in turn, obtained from web applications, that is, from the internet, with a very significant exposure surface, posing greater risks to the data subjects, which requires appropriate technical and organizational measures of all kinds, including security measures, specifically aimed at ensuring that there is no unlawful access to such personal data. As has been demonstrated and argued throughout this sanctioning procedure, it is considered that appropriate security measures were not implemented in this case to guarantee the security of the personal data of the clients, which resulted in unlawful access to the personal data of the clients of CAJA RURAL DE GIJON. Therefore, responsibility is not being demanded solely as a consequence of a result caused by a cyberattack.

It is much more; it is a failure to comply with the obligations imposed by the GDPR. Therefore, it is emphasized that the data controller must establish, at C/ Jorge Juan, 6

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its relationship with the data processor, clear modalities for such assistance, and provide precise instructions to the data processor on how to comply with them appropriately and document it in advance through a contract or another (binding) agreement, and also subsequently during the validity of the same, and verify at all times during the execution of the contract its compliance in the manner established therein.

It suffices to bring to mind the content of the Supreme Court ruling STS 1562/2020, of June 15, 2020, rec. 601/2019, which states the following:

"In this regard, the Supreme Court ruling of June 5, 2004, which confirms, in cassation for the Unification of Doctrine, that of this AN of October 16, 2003, echoing the arguments made by this Chamber refers to the differentiation of two responsible parties based on whether the decision-making power is directed at the file or at the data processing itself. Thus, the data file controller is the one who decides the creation of the file and its application, as well as its purpose, content, and use, that is, who has decision-making capacity over all the data recorded in that file. The data processor, however, is the entity to which decisions regarding the specific activities of a particular data processing operation can be attributed, that is, regarding a specific application. This would involve all those cases in which the decision-making power must be differentiated from the material execution of the activity that comprises the processing. With this, as also argued by the STS of April 26, 2005 (cassation for unification of doctrine 217/2004), the Spanish legislator aims to adapt to the requirements of Directive 95/46/EC, which aims to provide a legal response to the phenomenon, which is increasingly frequent, of the so-called outsourcing of IT services, where multiple operators act, many of them insolvent, created with the aim of seeking impunity or irresponsibility for those who follow them in the subsequent links of the chain. Currently, the new Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data (which repeals Directive 95/46/EC, and applies directly from May 25, 2018) also distinguishes between the figures of the controller and the processor. The former is defined in paragraph 7) of Article 4 as "a natural or legal person (...) who determines the purposes and means of the processing." And the processor in paragraph 8) of the same Article 4 as one who "processes personal data on behalf of the data controller."

This in relation to Articles 24 and 28 of the same European Data Protection Regulation. Controller and processor of data who, without a doubt, are also responsible for infringements in the field of data protection, in this new regulatory framework, in accordance with the provisions of Article 82.2 of the aforementioned Regulation (EU) 2016/679, which states: Any controller participating in the processing operation shall be liable for damages caused in the event that such operation does not comply with the provisions of this Regulation. A processor shall only be liable for damages caused by processing when it has not complied with the obligations of this Regulation directed

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specifically to those in charge or who acted outside or against the legal instructions of the responsible party. It follows from all of the above that the involvement, in the present case, of a data processor ZZZZ does not exempt the entity XXXX, now the appellant, from liability, and this is despite the strength of the clauses contained in the contract and its annex signed by both companies (proven facts 9 and 10) regarding the personal data processed, which was for the purpose of carrying out an advertising campaign concerning car and motorcycle insurance marketed by (XXXX), ultimately benefiting said XXXX, being the acting entity that ultimately determines the purposes and means of the repeated data processing, therefore it cannot be exempted from liability.”

The STS continues, regarding the possible exemption of liability alleged concerning what was agreed in the "data processor" contract, as follows:

“The sanctioned conduct of obstruction or hindrance by XXXX of its client's exercise of the right to object to the processing of their data is manifested in that said company did not adopt any measures or precautions to prevent the sending of advertisements to its client's email addresses by those companies to which it entrusted the execution of the advertising campaigns.

The adoption of the necessary measures or precautions to ensure the effectiveness of the right to object to the processing of their data by XXXX, as the data controller, remains even if the advertising campaigns are not carried out based on data from its own files, but with databases from other companies contracted by XXXX, and in this case, it was established that the appellant did not communicate to the companies with which it contracted the provision of advertising services the complainant's objection to receiving advertisements from the Mutual, nor did it ultimately adopt any provisions to ensure the exclusion of its client from the advertising mailings contracted with third parties.”

Regarding the application of the principle of culpability in the area of sanctioning law regulated by the GDPR, the investigated entity brings up the doctrine established by the CJEU ruling of December 5, 2023 (case C-807/21, Deutsche Wohnen SE and Staatsanwaltschaft Berlin).

Well then, one might ask what the parameters of due diligence are that the investigated entity should have observed concerning the examined conduct. The answer is that the diligence it should have observed is that which was necessary to comply with the obligations imposed by Articles 5.2, 24, and 25 of the GDPR, in light of the doctrine of the National Court and the jurisprudence of the Supreme Court.

The SAN of October 17, 2007 (rec. 63/2006) is fully applicable to the case, which, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, states:

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“[...] the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, particular emphasis must be placed on the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is essential to insist on rigor and exquisite care to comply with the legal provisions in this regard.”

Furthermore, the National Court in matters of personal data protection has stated that “simple negligence or failure to comply with the duties imposed by the Law on those responsible for files or data processing to exercise extreme diligence is sufficient...” (Judgment of the National Court of June 29, 2001).

Regarding the allegation that the breach of personal data occurred within the framework of the data processing for which RSI was responsible, to the extent of carrying out the investigative actions exclusively with that entity, it should be noted that the preliminary investigative actions are precisely

carried out to clarify the facts and circumstances of what happened, gathering more information in order to determine whether or not there is a possible infringement of the data protection regulations. In this sense, the initiation of preliminary investigations and their execution, which is the authority of the AEPD, does not prejudice anything, but allows for the determination of the facts that occurred and the gathering of necessary information wherever it may be found to determine if there are indications of an infringement or not. Even after such an investigation, it may be the case that the proceedings are archived on the grounds that, in light of the information gathered, there are no indications of an infringement. This has not occurred in the present case.

Consequently, the allegations must be dismissed since the investigated entity has violated the obligations imposed by the GDPR as the data controller for the processing carried out in its name and on its behalf, in relation to the responsibilities required of every data controller by Article 24 of the GDPR. Therefore, the allegations must be dismissed, emphasizing that the arguments presented do not undermine the essential content of the infringement declared to have been committed nor do they constitute sufficient justification or exculpation.

“THIRD. ON THE IMPACT ON THE PRINCIPLES OF SANCTIONING LAW DERIVED FROM THE INTERPRETATION MADE BY THE AEPD”

CAJA RURAL DE GIJON considers that it has not committed any infringement of the Data Protection regulations, much less the simultaneous infringement of Articles 5.1 f) and 32 of the GDPR, as the triple identity of subject, fact, and protected legal asset coincides; there is no doubt that in this case the principle of non bis in idem should apply, with the imposition of a sanction only under Article 5.1.f) as it is more serious than either of the two infringements attributed.

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And in the event that the AEPD finds a violation, it should subsidiarily recognize a medial concurrence as one of the infringements is subsumed and embedded in the other, as provided for in Article 29.5 of the LRJSP, “When the commission of one infringement necessarily results in the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed.”

“1. Violation of the non bis in idem principle in the application of Articles 5.1 f) and 32 of the GDPR”

In this regard, and in relation to this allegation made by CAJA RURAL DE GIJON against the initiation agreement, it should be noted that since the filing of the initially attributed infringement under Article 32 of the GDPR has been proposed, it is no longer necessary to respond to these allegations, as the attribution of the infringement of Article 5.1.f) of the GDPR no longer coincides with the attribution of the infringement of Article 32 of the GDPR.

“FOURTH. ON THE ALLEGED VIOLATION OF ARTICLE 32.1 OF THE GDPR”

CAJA RURAL DE GIJON has stated that the AEPD considers the alleged violation of Article 32 of the GDPR to be “evidenced,” that is, it considers the alleged insufficiency of the security measures adopted to be evident due to the occurrence of the personal data breach, making exclusive reference to the report on the breach contained in the administrative file, neglecting in the initiation agreement all the measures adopted as well as the audit carried out, and that there is a misinterpretation of what occurred in the RSI systems, (...).

Well, as indicated, upon reviewing the allegations made by the responding party, and in consideration of the same, reviewing the documentation in the administrative file and that provided by the responding party, it is evident that all the technical and organizational security measures whose absence has been proven have had a direct impact on the personal data breach, without there having been a violation, in this specific case, of Article 32 of the GDPR, as the absence of other independent technical and organizational security measures from the personal data breach has not been substantiated.

Regarding the sufficiency of the security measures, in relation to the non-compliance with Article 5.1.f) of the GDPR, we refer to what has already been indicated in the legal basis IV of this resolution proposal, which explains and details why they were neither sufficient nor appropriate.

Furthermore, we will indicate that it is true that it is recorded that, both prior to and subsequent to the security incident, the investigated entity conducted audits and reviews by third-party specialists aimed at detecting vulnerabilities solely concerning the security of the information systems; but it is also true that despite the existence of such investigations, C/ Jorge Juan, 6

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Controls and checks were unable to locate and reveal the existing vulnerabilities, as stated in the proven facts.

On the other hand, CAJA RURAL DE GIJON claims that RSI holds various security certifications, referenced in the third proven fact of this resolution proposal.

Article 28 of the GDPR, Processor, in its paragraph 5, establishes that:

“5. The adherence of the processor to a code of conduct approved in accordance with Article 40 or to a certification mechanism approved in accordance with Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.”

In this sense, to demonstrate that processors offer the suitability and guarantees required by the GDPR, adherence to a certification mechanism can be used as an additional element to indicate the existence of sufficient guarantees to implement appropriate technical and organizational measures to protect personal data.

This is because, in addition to the fact that a processor has been certified in data protection, this certification does not absolutely prove that the sufficient guarantees in relation, in this case, to the provision of Article 28.1 of the GDPR, have been implemented and are effectively operating throughout the entire processing cycle and during the time that the processing is taking place.

In the field of data protection, this type of instrument is a voluntary compliance mechanism in which specific rules are established to contribute to the correct application of the GDPR and the LOPDPGDD.

According to the GDPR, the data controller must adopt appropriate measures, including the selection of processors, in such a way as to guarantee and be able to demonstrate that the processing is carried out in accordance with the GDPR (principle of active accountability).

It is true that the certifications that the processor RSI seems to hold are mentioned in the data processing agreement; however, let us note that all the certifications listed in the third proven fact are not the certifications provided for in either Article 28 or Article 42 of the GDPR; they are not data protection certifications, but rather information security certifications or certifications related to other obligations that must be fulfilled by the controller or the processor based on other regulations different from data protection.

Thus, in the “Agreement to Modify the Data Protection Clause of the Service Provision Contracts,” signed between CAJA RURAL DE GIJON and RSI, in its “Annex B - Security Measures to the Agreement to Modify the Data Protection Clause of the Service Provision Contracts,” it is indicated that RSI holds the following certifications:

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(...)

Furthermore, the citation in the engagement contract is not accompanied by the certification itself - for the purposes of verifying that it has indeed been certified and to see exactly what it is certified for, at what moment it was certified, and whether the certification was still valid at the time of the personal data breach (since certifications have a validity period) - this certification is not for data protection.

In this regard, the report of the Legal Cabinet 170/2018 of the AEPD establishes the difference

between information security and the protection of personal data. Thus, it is indicated that,

“Prior to analyzing the specific issue raised in the consultation, this Legal Cabinet deems it appropriate

to make a preliminary reference to (...).

Regarding information security, it encompasses the set of techniques and measures aimed at ensuring the confidentiality, integrity, and availability of information and data important to any organization, regardless of their format. (...)

On the contrary, the protection of personal data of individuals is configured as a true fundamental right that finds its foundation in Article 18.4 of the Spanish Constitution, according to which “the law will limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.” This has been recognized by our Constitutional Court, highlighting in Judgment 94/1998, of May 4, that the aforementioned Article 18.4 “not only entails a specific instrument for the protection of citizens' rights against the tortious use of computing technology, but also enshrines an autonomous fundamental right to control the flow of information concerning each person - to ‘privacy’ according to the neologism stated in the Explanatory Memorandum of the LORTAD - whether or not it belongs to the strictest sphere of intimacy, in order to preserve the full exercise of their rights.”

This is reflected in the Preamble of the Organic Law Project on Personal Data Protection and Guarantee of Digital Rights, which is transcribed below for its clarity:

“The protection of individuals in relation to the processing of personal data is a fundamental right protected by Article 18.4 of the Spanish Constitution. In this way, our Constitution was a pioneer in recognizing the fundamental right to personal data protection when it stipulated that ‘the law will limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.’ It echoed the work developed since the late 1960s in the Council of Europe and the few legal provisions adopted in countries in our environment.

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The Constitutional Court stated in its Judgment 94/1998, of May 4, that we are dealing with a fundamental right to data protection, which guarantees individuals control over their data, any personal data, and its use and destination, to prevent the illicit trafficking of such data or harm to the dignity and rights of the affected parties; thus, the right to data protection is configured as a citizen's power to oppose the use of certain personal data for purposes other than those that justified its collection. In Judgment 292/2000, of November 30, it considers this right as an autonomous and independent right that consists of a power of disposition and control over personal data, enabling the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and also allowing the individual to know who holds that personal data and for what purpose, being able to oppose such possession or use.

At the legislative level, the specification and development of the fundamental right of protection for individuals in relation to the processing of personal data originated with the approval of Organic Law 5/1992, of October 29, regulating the automated processing of personal data, known as LORTAD. Organic Law 5/1992 was replaced by Organic Law 15/1999, of December 5, on the protection of personal data, in order to transpose Directive 95/46/EC of the European Parliament and of the Council, of October 24, 1995, regarding the protection of individuals in relation to the processing of personal data and the free movement of such data. This organic law marked a second milestone in the evolution of the regulation of the fundamental right to data protection in Spain and was complemented by an increasingly abundant jurisprudence from the contentious-administrative jurisdictional bodies.

On the other hand, it is also included in Article 8 of the Charter of Fundamental Rights of the European Union and in Article 16.1 of the Treaty on the Functioning of the European Union. Previously, at the European level, the aforementioned Directive 95/46/EC had been adopted, whose purpose was to ensure that the guarantee of the right to personal data protection did not pose an obstacle to the free movement of data within the Union, thus establishing a common space for the guarantee of the right that simultaneously ensured that in the case of international data transfers, their processing in the destination country was protected by safeguards adequate to those provided for in the directive itself.

And in this same sense, Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of individuals with regard to the processing of their personal data and the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation, GDPR), states that its purpose is “to protect the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data” (Article 1.2), highlighting in its Recital 1 that “the protection of individuals in relation to the processing of personal data...”

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Personal data is a fundamental right” and in its Recital 10 that “to ensure a uniform and high level of protection for natural persons and to eliminate obstacles to the free movement of personal data within the Union, the level of protection of the rights and freedoms of natural persons with regard to the processing of such data must be equivalent in all Member States. It must be ensured throughout the Union that the application of the rules for the protection of the fundamental rights and freedoms of natural persons in relation to the processing of personal data is consistent and homogeneous.” Consequently, the right to the protection of personal data of natural persons is a fundamental right and, therefore, situated at the highest level of legal protection, which is currently regulated directly by community legislation, establishing the aforementioned GDPR a set of principles, rights, obligations, and an organizational structure aimed at guaranteeing this fundamental right. Among these, information security appears as an additional obligation of the controllers and processors who must implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which will include, among other factors, “the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services” and “the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident” (Article 32.2. b) and c) of the GDPR).

Therefore, there is no doubt that the guarantee of the security of personal data acquires special significance regarding its protection, but without being limited exclusively to the field of security of such information, as the protection of personal data has a much broader scope that encompasses, as we said, a set of principles, rights, and obligations that are much wider. (the underlining is ours)

This issue is substantial since the certification mentioned in the service contract does not serve as an element to “demonstrate the existence of sufficient guarantees referred to in paragraphs 1 and 4” of Article 28 of the GDPR, as it does not pertain to data protection. The difference in approach between mere information security and data protection is extremely important, as while the former focuses exclusively on the security of information, the risk-based approach of the GDPR (much broader as it focuses on the risks to the rights and freedoms of data subjects arising from the processing of personal data) is centered on natural persons, with security being just one obligation among those of the GDPR to achieve the protection of natural persons in the terms of Recitals, notably 1 and 10, as well as in accordance with the provisions of Article 1 of the GDPR.

Within the management of GDPR compliance lies risk management, on which information security pivots and not the other way around.

(...).

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CAJA RURAL DE GIJON argues that the security measures initially implemented by RSI are outlined in the service agreement signed with RSI and that the attackers may have legitimate credentials for access, and that the attack is not due to weaknesses in the implemented systems.

Prior to this, we must refer to the established facts and the description of the personal data breach to

understand how and why the personal data breach occurred.

Regarding the security measures included in the "Amendment Agreement of the Data Protection Clause of the Service Provision Contracts," when referencing the security measures, there is a referral to those listed in Annex B - Security Measures to the Amendment Agreement of the Data Protection Clause of the Service Provision Contracts.

Well, from a detailed examination of the citation of these measures, as we are unaware of their development in relation to the specific measures implemented, we can again verify that they are measures that refer generally to information security and not to data protection (...), a substantially different issue from data protection. (...) A policy is a central and guiding instrument of an organization in which the responsible party addresses its objectives and establishes procedures, resources, and mechanisms to carry it out, requiring subsequent detailed development. It is not the same to address mere information security as it is to address the protection of a fundamental right such as data protection, considering the focus and purpose of each.

Furthermore, the fact that a list of measures appears in a service agreement (in this specific case, information security measures) does not imply that they guarantee appropriate security as determined by Article 5.1.f) of the GDPR, because one must consider the focus on the protection of the rights and freedoms of the data subjects, and the implemented measures do not necessarily serve to fulfill such an objective if they have not been designed and implemented from the perspective required by the GDPR.

"FIFTH. ON THE ALLEGED VIOLATION OF ARTICLE 5.1.f) OF THE GDPR"

CAJA RURAL DE GIJON considers the contradiction in which the Initial Agreement incurs by stating that "the identification of a personal data breach does not imply the direct imposition of a sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied," when it subsequently understands that Article 5.1.f) has been violated as a consequence of the mere fact that the breach has occurred.

On this particular matter, we refer to legal basis IV explaining the concurrence of the violation of Article 5.1.f) of the GDPR in this specific case, where it is detailed that the violation has not been committed merely due to the result of loss of confidentiality, even though it is a result-based violation.

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The Judgment of the Constitutional Court (STC) 292/2000, in its analysis of the "content" of the fundamental right to data protection, refers to the power of disposition and control that belongs to the data subject regarding the possible use or uses of their data by a third party. The seventh Legal Foundation states:

"[...] it follows that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose such possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally concretized in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual."

The obligation of confidentiality imposed on the data controller by Article 5.1.f) of the GDPR is an obligation of result, such that for the provision to be considered infringed, the confidentiality of the data must be breached.

As specified by the Supreme Court ruling of February 15, 2022, rec. of cassation 7359/2020,

"The obligation to adopt the necessary measures to guarantee the security of personal data cannot be considered an obligation of result, which implies that once a personal data breach occurs, there is liability regardless of the measures adopted and the activity carried out by the data controller or

processor. In obligations of result, there is a commitment to achieve a specific objective, ensuring the achievement or proposed result, in this case, guaranteeing the security of personal data and the non-existence of breaches or security failures (...). (the emphasis is ours)

It should be noted that the data controller is contradictory when, on the one hand, it considers that there has been no violation of data protection regulations and believes that everything should be redirected to the filing of the case, while on the other hand, it confirms and indicates that it is evidenced in the file "that the attacker could access the data, but in no case alter it,..."; however, as stated in previous paragraphs, the same person in charge of the (...).

Regarding the allegations reiterated by the responding party that the infringements attributed concerning Article 5.1.f) and 32 of the GDPR are identical since we are facing the same fact subject to double imputation, we refer to what has already been indicated in previous legal foundations regarding the proposal to file the infringement of Article 32 of the GDPR.

In light of the above, it is established that CAJA RURAL DE GIJON has violated the principle of confidentiality and integrity of the data, a principle enshrined in Article 5.1.f) of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

"SIXTH. ON THE ALLEGED VIOLATION OF ARTICLE 33 OF THE GDPR

Regarding the allegations made by the complainant concerning the imputation of Article 33 of the GDPR, a response is no longer necessary, as, as stated in the proven facts and in the preceding legal foundations, the filing of the initially imputed infringement is proposed in light of the specific circumstances of the case previously expressed.

"SEVENTH. VIOLATION OF THE PRINCIPLE OF PROPORTIONALITY IN THE DETERMINATION OF SANCTIONS"

CAJA RURAL DE GIJON has argued that if it is considered that there has been a violation of data protection regulations, particular consideration should be given in determining the sanction that may be imposed under the principle of proportionality.

It should be noted that Article 83.1 of the GDPR states that "Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive."

Fines, therefore, as deduced from the invoked provision, must be effective, proportionate, and dissuasive to achieve the intended purpose of the GDPR.

It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules external to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGGD in the Spanish case as permitted by the GDPR itself - would undermine the effectiveness of the system, losing its sense, its teleological purpose, the legislator's intent, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive. And in this way, it would also deprive the interested parties of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished and it would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms.

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Regarding the principle of proportionality of sanctions, the National Court has indicated in numerous rulings that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in all cases, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that

every sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

In accordance with the circumstances present in this case, which have been meticulously and appropriately evaluated, this resolution does not violate the principle of proportionality in determining the imposed sanctions, resulting in a measured and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that would further justify the reduction made, especially considering the amount to which such sanctions may ascend in accordance with Article 83.5 of the GDPR, which provides for an infringement of Article 6.1 of the GDPR, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

In this case, the entity under investigation is a large company within its sector of activity; according to the proven fact twenty-first, its turnover (gross margin) during the year 2022 amounted to €7,500,000, resulting in the fine imposed for the infringement of Article 5.1.f) of the GDPR amounting to €95,000, which would be in the lower range of the possible administrative fine that could be imposed on the data controller and far from the maximum of 4% of the total annual global turnover of the previous financial year considering the turnover.

- CAJA RURAL DE GIJÓN considers, regarding the circumstance derived from the nature, severity, and duration of the infringement, that the mere reference to the provision subject to the infringement is taken as an aggravating factor.

However, such an argument cannot be accepted as it is inconsistent; in fact, what is being highlighted is that the infringement of Article 5.1.f) affects one of the basic principles on which the data protection regulations for personal data are based, confidentiality, and this violation is heightened and aggravated by the number of individuals affected by the incident, the damages caused (irreversible loss of power and control over personal data by clients) and its duration, since “although the breach was detected on December 7, 2022, prior accesses to that date are confirmed, with the highest volume of accesses occurring between November 10 and November 23, 2022,” without it having been detected.

- CAJA RURAL DE GIJÓN considers, regarding the intentionality or negligence in the infringement, that the absence of diligence in its actions is due to...

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exclusively to its status as a financial entity and, in essence, the aforementioned statement is surprising.

Considering that the conduct of CAJA RURAL DE GIJON involves the element of culpability, which is essential to impose sanctioning responsibility, in this case, it is specifically manifested in a very serious lack of diligence in complying with the principle of confidentiality of personal data, as has been demonstrated throughout the procedure.

RSI has pointed out that:

(...)

Furthermore, the lack of diligence demonstrated in the infringing conduct for which it is held responsible must be classified as very serious; CAJA RURAL DE GIJON is obliged under Article 5.2 of the GDPR to carry out the appropriate activities to comply with the principles of data protection, particularly the principle of confidentiality, and to be in a position to demonstrate its compliance.

- CAJA RURAL DE GIJON considers that taking its banking activity into account as an aggravating factor is a kind of objective aggravation; firstly, it is not a matter related to the specific activity carried out by a particular entity, but rather the aggravating factor provided for in Article 76.2.b) of the

LOPDGDD operates when the infractor's activity is linked to the processing of personal data, and it is obvious that, in relation to the present data controller, its activity, in this specific banking case, is clearly linked, directly, to multiple processing of personal data affecting thousands of clients. In this regard, the National Court has considered it correct to appreciate the aggravating factor provided for in Article 76.2.b) of the LOPDGDD whenever the aforementioned link exists, and it has considered this in numerous rulings, including the one dated 04/07/2024, (rec. 382/2022) which states regarding the aforementioned circumstance that:

“As well, the aggravating factor of the continued nature of the infringement, included in Article 76.2.a) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, can also be appreciated, referring to it when we analyze the application of the GDPR to the infringement that concerns us. Likewise, the appreciation of the link between the infractor's activity and the processing of personal data (Article 72.2.b) of Organic Law 3/2018, of December 5), due to the fact that the activity of the appellant is linked to the processing of data from both clients and third parties; this link is well-known since the entity, due to its activity, is in constant contact with clients and third parties handling a large volume of data, which imposes a greater duty of diligence.”
(the emphasis is ours).

Finally, CAJA RURAL DE GIJON considers that the AEPD, in modulating its responsibility, has not taken into account elements to mitigate it, such as evidentiary elements that demonstrate compliance with the highest standards in security matters, nor the fact that it subjected the measures adopted to a system of periodic auditing or that RSI resolved the vulnerability that constituted the data breach. It is sufficient to refute what has been stated by referring to the content of the proven facts and regarding the last issue raised, to refer to what the data processor itself indicates in its notification of the personal data breach, dated 14/12/2022, and the document of 10/01/2023 forwarding the final report, in which it responds to the following questions:

- Could the breach have been avoided by adopting any additional security measures?

Yes

- Did the incident occur due to any failure, deficiency, or non-compliance with implemented security measures?

Yes

And regarding the actions taken after the incident:

- Have you adapted/improved your security procedures and policies?

No

Therefore, the allegation made regarding the violation of the principle of proportionality cannot be accepted.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued, that the Director of the Spanish Agency for Data Protection sanctions CAJA RURAL DE GIJON with NIF F33604455,

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of NINETY-FIVE THOUSAND EUROS (€95,000).

That the Director of the Spanish Agency for Data Protection proceeds to archive, regarding CAJA RURAL DE GIJON with NIF F33604455,

- For the alleged infringement of Article 32.1 of the GDPR, classified in Article 83.4.a) of the GDPR.

- For the alleged infringement of Article 33 of the GDPR, classified in Article 83.4.a) of the GDPR.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the total sanction would be established at SEVENTY-SIX THOUSAND EUROS (€76,000) and its payment will imply the termination of the procedure, without prejudice.

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of the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned article 85.2, you must make it effective by depositing it into the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, you must send the proof of deposit to the General Subdirectorate of Inspection to proceed with closing the file.

By virtue of this, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with article 89.2 of the LPACAP.

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D.D.D.

INSPECTOR/INSTRUCTOR

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(...)

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SECOND: On December 19, 2024, the respondent has proceeded to pay the sanction in the amount of 76,000.00 euros making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the second has been justified, voluntary payment by

the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure,

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except for matters relating to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

III

Voluntary Payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified proposal for resolution allowed for the voluntary payment of the proposed sanction, which would entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €76,000.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned proposal for resolution, and before a resolution was issued by this authority, the party being claimed, on December 19, 2024, proceeded to make the voluntary payment, availing itself of the 20% reduction and renouncing any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the proposal for resolution transcribed in this resolution.

The sum of the aforementioned amounts results in a total of €95,000.00.

After the party being claimed proceeded with the prompt payment, although without acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the aforementioned total by 20%, resulting in a final amount of €76,000.00.

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SECOND: TO DECLARE the termination of procedure EXP202400057, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to CAJA RURAL DE GIJÓN, S.C.A.C.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment on the withdrawal or renunciation of any action or administrative appeal, this authority accepts the renunciation expressly stated by the party being claimed, and consequently, the filing of an optional appeal for reconsideration against this resolution is not

admissible, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no administrative appeal available due to the express renunciation, this resolution will be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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